

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

STIPULATION FOR SETTLEMENT IN LIEU OF JUDGMENT WITH ORDER
GRANTING SAME

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by the authorized agent for the Plaintiff and also through its counsel, and the Defendant, KALMAN HARTIG, by their signatures below, and hereby stipulate and agree to the following:

1. Plaintiff instituted an action against the Defendant, KALMAN HARTIG, for a writ of possession for the residence located at Colonial Mobile Manor, Lot #100, 900 9th Avenue East, Palmetto, Florida 34221 for violations of Rules and Regulations of Colonial Manor MHC Holdings, LLC pursuant to Fla. Stat. §723.061(c)(2), specifically Rule 7 pertaining to using the exterior and carport for storage, resulting in a failure to maintain the premises on Lot #100 in a neat and clean manner.
2. Defendant has asserted defenses including for equitable estoppel, retaliatory conduct, unconscionability and unlawful eviction, all of which the Plaintiff denies.
3. In lieu of further litigation, which may result in the eviction of KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION of the premises located at

Defendant Initials KH Plaintiff Initials CP

900 9th Avenue East, Lot #100, Palmetto, Florida 34221, the parties do agree to the following terms and conditions for the settlement of this cause of action:

- a. The Plaintiff will, upon the Defendant complying with this Stipulation, issue a dismissal of the eviction and damages action with prejudice, with each party bearing their own costs and fees.
 - b. KALMAN HARTIG will vacate Lot #100 of Colonial Manor and Colonial Manor by or before June 5, 2025 at 5:00 p.m. to include *all* personal contents inside and outside of the home including food (both refrigerated and not refrigerated), but shall not be required to remove the mobile home located on Lot #100, which KALMAN HARTIG may sell under the conditions outlined below. "Vacate" means not residing at, not staying the night, not allowing anyone else to reside in the home, removing all possessions from the interior of the home, removing all food, and not using the interior or exterior of the home for storage.
 - c. KALMAN HARTIG shall pay May 2025 rent directly to Colonial Manor by or before 5 p.m. May 5, 2025.
 - d. KALMAN HARTIG shall pay rent for each successive month directly to the Plaintiff until he sells the mobile home, by or before the 5th day of each successive month. All payments due hereunder shall be deemed made when actually delivered to and received by the appropriate Landlord personnel. Payment shall not be deemed made when placed in the mail.
 - e. KALMAN HARTIG agrees that by his signature on this stipulation, he is agreeing to release any remaining rent from the Registry of the Court paid by him into the Registry of the Court.
 - f. If KALMAN HARTIG does not sell the mobile home by the dates as identified below, he agrees that he has abandoned the mobile home, which Plaintiff may sell as abandoned property pursuant to Florida Statutes Chapter 715.
4. KALMAN HARTIG may hire a mobile home sales agent to sell the mobile home, and if he does, will provide a true copy of the mobile home sales agent listing agreement to the Plaintiff by or before July 31, 2025. If he does so, Defendant will have until August 31, 2025 to sell the mobile home before it is agreed by the parties that he has abandoned the mobile home.

Defendant Initials *KH* Plaintiff Initials *GP*

5. If KALMAN HARTIG does not provide a mobile home listing agreement to the Plaintiff, KALMAN HARTIG agrees that he has abandoned the mobile home as of July 31, 2025.
6. Without admitting to the validity of the Plaintiff's cause of action, Defendant agrees that if Defendant does not vacate the home by June 5, 2025 at 5:00 p.m., or otherwise violates this Stipulation, Plaintiff will be entitled to apply to the Court for a writ of possession for the mobile home lot, with the only issue to be determined by the court being, by affidavit of Plaintiff and with notice to Defendant, that the Defendant has not vacated the premises, not timely paid rent, or otherwise violated paragraph 3 or 7 of this Stipulation.
7. KALMAN HARTIG agrees to sell the mobile home only to a buyer approved by the Plaintiff. The approval of the buyer shall not be unreasonably withheld by the Plaintiff. During the pendency of the sale or until he abandons the mobile home KALMAN HARTIG, he must maintain the exterior of the home as the rules and regulations of Plaintiff require.

8. ~~If Defendant does not sell the mobile home by July 31, 2025, the mobile home is agreed by Defendant to constitute abandoned property which Plaintiff is entitled to sell pursuant to Chapter 715.~~ *KH as agreed on phone at 4:18 pm with Mr. Price on 5/2/25*
9. Upon Defendant's full compliance with the Settlement Agreement, Plaintiff will file a notice of dismissal of this cause of action and be responsible for its own costs and attorney fees. However, the Defendant agrees that should he violate paragraphs

Defendant Initials KH Plaintiff Initials GP

3, 6 or 7 of this Stipulation for Settlement in Lieu of Judgment, the Plaintiff shall be entitled to a writ of possession for the premises, procedurally by filing a sworn statement with the Court and providing notice to KALMAN HARTIG of the Defendant's violation, at which time, the Court shall consider by hearing scheduled by the Plaintiff with notice to the Defendant, whether KALMAN KHARTIG has violated this Stipulation. Upon substantial proof of the KALMAN HARTIG's breach, the Plaintiff shall be entitled to a writ of possession for the premises and all of its remedies originally sought in its complaint, that is, a Judgment for Possession and the issuance of a Writ of Possession as provided in Florida Statute §723.062, and a judgment for all unpaid sums and all costs and attorney fees incurred by Plaintiff in the processing of this action.

10. By this Stipulation, each of the parties, individually and collectively, acknowledge that they have had an opportunity to evaluate their respective claims and the factual support for same, and are entering into this Agreement freely and voluntarily.

ex. &
11.

Except as provided by this Stipulation, each of the parties agree to bear their own attorney fees, costs and expenses arising out of the instant lawsuit, and waive any entitlement in law or equity which any may have against the other as to same.

12. The laws of the State of Florida shall govern this Agreement. The venue for this cause of action is Manatee County, Florida. Each party has executed this agreement after having discussed same with their respective counsel and no one has forced or threatened the parties to execute this Agreement. This Agreement may be executed

Defendant Initials

Plaintiff Initials

in counterparts, and is subject to the Florida Uniform Electronic Transactions Act.

The parties anticipate that this Agreement will be filed with the Clerk of Court in Manatee County, in the above styled case docket.

13. Upon the Defendant fully complying with this Stipulation, the Plaintiff will file its Notice of Dismissal within ten (10) days and provide same to KALMAN HARTIG by electronic mail.

14. A proposed order approving this Stipulation is attached for submission of this Stipulation to the Court.

The Court reserves jurisdiction to enforce this Stipulation.

Executed by the parties on the dates identified with each signature.

Dated: May 2nd, 2025

Kalman Hartig
Kalman Hartig
900 9th Avenue East Lot 100
Palmetto, FL 34221
Email: sonigenesis@gmail.com
Pro-Se Defendant

Dated: May 5, 2025

William C. Price, III, Esquire
William C. Price, III, Esquire
Florida Bar No. 0333824
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
pleadings@wepriecelaw.com
Attorney for Plaintiff, Colonial
Manor MHC Holdings, LLC d/b/a
Colonial Mobile Manor

Dated: May 2, 2025

Cheryl Peake
COLONIAL MANOR MHC HOLDINGS, LLC
By: Cheryl Peake
Park Manager

Defendant Initials KH Plaintiff Initials WCP